

§ 756. Placement. (a) For purposes of section seven hundred fifty-four, the court may: (i) place the child in its own home; (ii) order the child be placed in the custody of a suitable relative or other suitable private person; or (iii) order the child be placed in the custody of a commissioner of social services.

(b) Where the child is placed with the commissioner of the local social services district: (i) (A) the child may be placed by the social services district into a foster boarding home; or (B) if the court finds that the respondent is a sexually exploited child as defined in subdivision one of section four hundred forty-seven-a of the social services law, an available long-term safe house; or (ii) the court may direct the commissioner to: place the child with an authorized agency or class of authorized agencies.

(c) Provided, however, that a placement shall not be ordered pursuant to paragraph (iii) of subdivision (a) of this section:

(i) In instances where the only finding made against the respondent is that they meet the definition of a person in need of supervision pursuant to paragraph (i) of subdivision (a) of section seven hundred twelve of this article; or

(ii) Unless the court finds and states in its written order that the placement of the respondent is:

(1) in the best interest of the respondent; and

(2) that it would be contrary to the welfare of the respondent to continue in their own home.

(d) Unless the dispositional order provides otherwise, the court so directing shall include one of the following alternatives to apply in the event that the commissioner is unable to so place the child:

(i) the commissioner shall apply to the court for an order to stay, modify, set aside, or vacate such directive pursuant to the provisions of section seven hundred sixty-two or seven hundred sixty-three; or

(ii) the commissioner shall return the child to the family court for a new dispositional hearing and order.

(e) Placements under paragraph (iii) of subdivision (a) of this section may be for an initial period of no greater than sixty days. The court may extend a placement pursuant to section seven hundred fifty-six-a. In its discretion, the court may recommend restitution or require services for public good pursuant to section seven hundred

fifty-eight-a in conjunction with an order of placement.